

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL APPELLATE JURISDICTION)

First Appeal No. 156 of 2008

With

First Appeal No. 162 of 2008

With

First Appeal No. 175 of 2008

With

Title Appeal No. 201 of 2008

In the matter of:

Eastern Housing Limited

...Appellant.

-Vs-

Jamuna Builders Limited and others

...Respondents.

Present

Mr. Justice Mamnoon Rahman

And

Mr. Justice Ashish Ranjan Das

Mr. Shah Monjurul Haque, Adv.

...For the appellant.

Mr. Ziaul Haque, Adv.

...For the respondents.

Heard on: **14.11.2017**

And

Judgment on: **The 21st November, 2017.**

Mamnoon Rahman,J:

These 4(four) appeals have been heard together and now disposed of the common judgment as they do involve similar question of law and facts as well as the parties are same.

All the appeals are directed against the judgment and decree dated 12.03.2008 passed by the Joint District Judge, 7th Court, Dhaka dismissing the all these suits on merit. The defendant as appellant filed all the appeals.

The short facts relevant for the disposal of these appeals, are that, the respondent as plaintiff instituted the aforementioned title suits impleading the appellant as defendant. Title suit No.85/06 has

been filed for a declaration to the effect that judgment & decree passed in title suit No. 109/73 is fraudulent, illegal; title suit No. 87/06 has been filed for a declaration to the effect that the mutation of the suit property in the name of the plaintiffs is legal and void, title suit no.86/06 is filed for declaration of judgment & decree passed in title suit no.58/68 as illegal, void the deed being no.1651 executed on 7-2-69 in pursuant to the decree as fraudulent, void & illegal & title suit no.88/06 has been filed for perpetual injunction against the defendant in respect of 73.87 acres of land, so that they cannot dispossess the plaintiffs from the suit property. These 4 suits have been filed against same defendant in respect of same land.

The defendant contested the said suits by filing separate written statements denying all the material allegations made in the plaints. The trial court framed as many as seven Issues and proceeded with the suits. Both the parties evidence both oral and documentary. The trial court after hearing the parties, considering the facts and circumstances, materials on record, evidence both oral and documentary dismissed all the suits on merit. Though all the suits were dismissed on merit but at the time of disposal of the said suits the trial court made certain adverse observation/findings against the papers and documents of the defendant-appellant for which finding no other alternative the present appellant filed the instant appeals for expunging the aforesaid observation and findings.

Mr. Shah Manjurul Haque, the learned counsel appearing on behalf of the appellant in all the appeals submits that the court below has rightly come to a conclusion that the plaintiff-respondent of all the suits miserably failed to prove their right, title and possession in the suit property as much as they have nothing to get a decree of a court of law and has rightly dismissed the suits. But he submits that unfortunately while adjudicating the suits in question the trial court made out a third case regarding the defendant and though dismissed the suits but made certain observations and findings which materially affected the defendant as much as the findings and observations made by the trial court are fully based upon mere presumptions and hypothetical case. He further submits that the trial court ought to have considered the case of the plaintiff and defendant side by side and while came to a conclusion that the suits which are liable to dismissed cannot pass any observation and findings against the defendant. The learned counsel also placed the relevant portions and submits that the appeals are liable to be allowed so far it relates to the observation and findings of the trial court regarding the defendant.

Mr. Ziaul Haque, the learned counsel appearing on behalf of the respondent-opposite party vehemently opposes the appeals. He submits that the court below on proper appreciation of the facts and circumstances, evidence materials on record has rightly made the observations and findings relates to the appellant's papers and

documents vide the impugned judgment which requires no interference by this court.

We have perused the impugned judgments and decrees, passed by the trial court, memorandum of appeals, grounds taken thereon as well as necessary papers and documents annexed herewith and heard the learned counsels for the contesting parties.

On perusal of the same, it transpires that the defendant as plaintiff filed four suits namely Title suit No.85/06 has been filed for a declaration to the effect that judgment & decree passed in title suit No. 109/73 is fraudulent, illegal; title suit No. 87/06 has been filed for a declaration to the effect that the mutation of the suit property in the name of the plaintiffs is legal and void, title suit No.86/06 is filed for declaration of judgment & decree passed in title suit No.58/68 as illegal, void the deed being No.1651 executed on 7-2-69 in pursuant to the decree as fraudulent, void & illegal & title suit No.88/06 has been filed for perpetual injunction against the defendant in respect of 73.87 acres of land, so that they cannot dispossess the plaintiffs from the suit property impleading the appellant as defendant. It further transpires that the defendant-appellant contested the suits by filing separate written statements denying all the material allegation made in the plaints. It also transpires that the trial court framed Issues and proceeded with the trial wherein both the parties adduced evidence both oral and documentary. On perusal of the suits it transpires that the plaintiff-

respondents prayed for different declaration in different suits relates to previous judgment and decree, certain mutation of the properties as well as injunction. However, it transpires that on detailed discussion of the facts and circumstances the trial court came to a conclusion which runs as follows;

Hence,

It is ordered

that title suit nos. 85/06, 86/06, 87/06 and 88/06 be dismissed on contest against defendant nos. 9, 7, 6 & 1 respectively & exparte against the rest without any order as to cost.

So, it transpires that while adjudicating the suits in question the trial court considered and came to a conclusion that the plaintiffs failed to prove their right, title and possession etc. by elaborate discussion of the factual aspects. However, on perusal of the impugned judgment it transpires that while adjudicating the suit in hand the trial court came to a conclusion which runs as follows;

Contesting defendant claims that Jahirul Islam purchased the suit land on behalf of defendant Eastern Housing Ltd. Due to that Eastern Housing Ltd filed title suit No. 109/73 for declaring Jahirul Islam as it's benamder. Defendant produced the judgment & decree of title suit no. 109/73, which have been marked as exht. ja & ja(i). Defendant has not submitted plaint of title suit no. 109/73. On perusal of exhibits Ja and Ja(1) i.e. the judgment & decree of title suit no. 109/73 it appears that Eastern Housing Ltd. being represented by its operative director Mir. Yasin filed title suit no.

109/73 for declaring Jahirul Islam as its benamdar for 660 acres of land including the suit land. The schedule attached to the decree shows that Jahirul Islam was declared benamdar for Eastern Housing Ltd for 660 acres of land of mouza Asulia, Rangamatia, Sreekhandia, taiubpur, Kabirpur, Aukpara, Mansantosh, Purba Norshighpur, Gouripur, Diakhali, Bashbari, Baipal, Gohaibari, Chitrashail, Dehara, Sarabo, Palashbari, Basaid & Gonakbari under Police Station Savar & mouza Baunia, Ghakuli, Digun, Harirampur & Janurabad under Police Station Mirpur. Jahirul Islam is claiming to have acquired decree for specific performance of contract only for 115.20 acres of land Diakhali & Purba Narsinghpur mouza. It has not been explained in title suit no. 109/73 that who, how, when & under what capacity transferred this huge area of land (660 acres) to benamdar of Eastern Housing Ltd. It seems to me that to escape of giving this explanation defendant has not submitted plaint of title suit no. 109/73. Schedule as given in title suit no. 109/73 did not mention either C.S. or S.A. Khatian of land incorporated for decree of court. Title suit no. 109/73 was for declaration of title of present defendant Eastern Housing Ltd holding Jahirul Islam as its benamdar. In spite of it decree of title suit no. 109/73 shows that the entire 660 acres of land or any part of it was not specified by giving boundary thereof i.e. suit property of title suit no. 109/73 was completely unspecified & vague.

The trial court further held as follows;

So, I am constrained to hold from above circumstances that the alleged bainapatra & both the decrees were created & obtained by Jahirul Islam & Eastern Housing Ltd. collusively & fraudulently using the tool of legality of unregistered agreement for sale to grab property either owned or left un-disposed of by people of minority community of the country. Inasmuch as fraud vitiates everything, as such I must not hesitate to hold that the alleged fraudulent bainapatra dated 24-11-63 & collusive decrees of title suit nos. 58/68 & 109/73 are void & illegal.

So, it transpires that while passing the aforesaid findings and observation the trial court relied upon certain hypothetical presumptions etc. The said findings and observation are not based upon the evidence as much as not at all required for adjudication of the real question in controversy. In our view since the trial court dismissed the suits of the plaintiff should have constrained itself within the case pressed by the plaintiff-defendant. The observation and findings so far it relates to defendant-appellants are not in accordance with law or based on material, evidence and other aspects which vigorously affect the rights of the defendant though they have succeeded in these suits. As such, we find substance in all these three appeals.

Accordingly, these four appeals are allowed. The observation and findings arrived at by the trial court so far it relates to the defendant/defendant's papers and documents are hereby expunged.

Apart from that the judgment and decree passed by the courts below are hereby maintained.

Send down the L.C. Records to the concerned court below at once. However, there shall be no order as cost.

(Mamnoon Rahman, J:)

I agree

(Ashish Ranjan Das, J:)

Emdad.B.O.